The Arbitrage Funds – State Street Administration

Reading copy of a publicly filed HTML contract exhibit. Original HTML is enclosed. Page numbers below belong to this reading copy.

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Exhibit (h)(i)

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AMENDED AND RESTATED ADMINISTRATION AGREEMENT

This Administration Agreement

(“Agreement”) dated as of September 24, 2026, and effective as of September 25, 2026, is by and between State Street Bank

and Trust Company, a Massachusetts trust company (the “Administrator”), and The Arbitrage Funds, a Delaware statutory trust

(the “Trust”).

WHEREAS, the Trust is an

open-end management investment company currently comprised of multiple series (each, a “Fund” and collectively, the “Funds”),

and is registered with the U.S. Securities and Exchange Commission (“SEC”) by means of a registration statement (“Registration

Statement”) under the Securities Act of 1933, as amended (“1933 Act”), and the Investment Company Act of 1940, as amended

(the “1940 Act”);

WHEREAS, Trust and the Administrator

had entered into an Administration Agreement, dated as of April 17, 2013 (as amended and in effect, the “Arbitrage Administration

Agreement”);

WHEREAS, AltShares Trust,

an open-end management company comprised of two series, AltShares Merger Arbitrage ETF and AltShares Event-Driven ETF, and the Administrator

had previously entered into a separate Administration Agreement, dated as of February 7, 2020 (as amended and in effect, the “AltShares

Administration Agreement”);

WHEREAS, pursuant to an Agreement

and Plan of Reorganization intended to qualify as a tax-free reorganization under Section 368(a)(1)(F) of the Internal Revenue Code of

1986, as amended, effective as of September 25, 2026, AltShares Merger Arbitrage ETF and AltShares Event-Driven ETF, each then a series

of AltShares Trust, transferred all of their respective assets and liabilities to, and were reorganized into, newly established series

of the Trust bearing the same respective names, and as a result of such reorganization, AltShares Merger Arbitrage ETF and AltShares Event-Driven

ETF each became a series of the Trust;

WHEREAS, The Arbitrage Funds

and the Administrator desire to replace the Arbitrage Administration Agreement with this Amended and Restated Administration Agreement;

WHEREAS, the Trust desires

to retain the Administrator to furnish certain administrative services to the Trust, and the Administrator is willing to furnish such

services, on the terms and conditions set forth in this Agreement.

NOW, THEREFORE, in consideration

of the premises and mutual covenants herein contained, the parties hereto agree as follows:

| | 1. | Appointment

of Administrator

The Trust hereby appoints

the Administrator to act as administrator to the Trust for purposes of providing certain administrative services for the period and on

the terms set forth in this

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Agreement. The Administrator accepts such appointment

and agrees to render the services stated herein.

The Trust currently consists

of the Fund(s) as listed in Schedule A to this Agreement and their respective classes of shares. In the event that the Trust establishes

one or more additional Fund(s) with respect to which it wishes to retain the Administrator to act as administrator hereunder, the Trust

shall notify the Administrator in writing. Upon written acceptance by the Administrator, such Fund(s) shall become subject to the provisions

of this Agreement to the same extent as the existing Fund, except to the extent that such provisions (including those relating to compensation

and expenses payable) may be modified with respect to such Fund in writing by the Trust and the Administrator at the time of the addition

of such Fund.

| | 2. | Delivery

of Documents

The Trust will promptly deliver

to the Administrator copies of each of the following documents and all future amendments and supplements, if any:

| | a. | The Trust’s Declaration of Trust and By-laws (“Governing Documents”);

| | b. | The Trust’s currently effective Registration Statement under the 1933 Act and the 1940 Act and each

Prospectus and Statement of Additional Information (“SAI”) relating to the Fund(s) and all amendments and supplements thereto

as in effect from time to time;

| | c. | Copies

of the resolutions of the Board of Trustees of the Trust (the “Board”) certified by the Trust’s Secretary authorizing

(1) the Trust to enter into this Agreement and (2)

certain individuals on behalf of the Trust to (a) give instructions to the Administrator pursuant

to this Agreement and (b) sign checks and pay expenses;

| | d. | A copy of the investment advisory agreement between the Trust and its investment adviser; and

| | e. | Such other certificates, documents or opinions which the Administrator may, in its reasonable discretion,

deem necessary or appropriate in the proper performance of its duties.

| | 3. | Representations

and Warranties of the Administrator

The Administrator represents and warrants

to the Trust that:

| | a. | It is a Massachusetts trust company, duly organized and existing under the laws of The Commonwealth of

Massachusetts;

| | b. | It has the requisite power and authority to carry on its business in The Commonwealth of Massachusetts;

| | c. | All requisite corporate proceedings have been taken to authorize it to enter into and perform this Agreement;

| | d. | No legal or administrative proceedings have been instituted or threatened which would materially impair

the Administrator’s ability to perform its duties and obligations under this Agreement; and

| | e. | Its entrance into this Agreement shall not cause a material breach or be in material conflict with any

other agreement or obligation of the Administrator or any law or regulation applicable to it.

| | 4. | Representations

and Warranties of the Trust

The Trust represents and warrants to

the Administrator that:

| | a. | It is a statutory trust, duly organized, existing and in good standing under the laws of its state of

formation;

| | b. | It has the requisite power and authority under applicable laws and by its Declaration of Trust and By-laws

to enter into and perform this Agreement;

| | c. | All requisite proceedings have been taken to authorize it to enter into and perform this Agreement;

| | d. | It is an investment company properly registered with the SEC under the

1940 Act;

| | e. | The Registration Statement has been filed and will be effective and remain

effective during the term of this Agreement. The Trust also warrants to the Administrator that as of the effective date of this Agreement,

all necessary filings under the securities laws of the states in which the Trust offers or sells its shares have been made;

| | f. | No legal or administrative proceedings have been instituted or threatened

which would impair the Trust's ability to perform its duties and obligations under this Agreement;

| | g. | Its entrance into this Agreement will not cause a material breach or be in material conflict with any

other agreement or obligation of the Trust or any law or regulation applicable to it; and

| | h. | As of the close of business on the date of this Agreement, the Trust is authorized to issue unlimited

shares of beneficial interest;

| | i. | Where information provided by the Trust or the Trust's Investors

includes information about an identifiable individual ("Personal Information"), the Trust represents and warrants that it has obtained all consents

and approvals, as required by all applicable laws, regulations, by-laws and ordinances that regulate the

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collection, processing, use or disclosure

of Personal Information, necessary to disclose such Personal Information to the Administrator, and as required for the Administrator to

use and disclose such Personal Information in connection with the performance of the services hereunder. The Trust acknowledges that the

Administrator may perform any of the services, and may use and disclose Personal Information outside of the jurisdiction in which it was

initially collected by the Trust, including the United States and that information relating to the Trust, including Personal Information

may be accessed by national security authorities, law enforcement and courts. The Administrator shall be kept indemnified by and be without

liability to the Trust for any action taken or omitted by it in reliance upon this representation and warranty, including without limitation,

any liability or costs in connection with claims or complaints for failure to comply with any applicable law that regulates the collection,

processing, use or disclosure of Personal Information, provided that this indemnification shall not apply to actions or omissions of the

Administrator, its officers or employees in cases of its or their own negligence, bad faith or willful misconduct.

| | 5. | Administration

Services

The Administrator shall

provide the services as listed on Schedule B, subject to the authorization and direction of the Trust and, in each case where appropriate,

the review and comment by the Trust’s independent accountants and legal counsel and in accordance with procedures which may be established

from time to time between the Trust and the Administrator.

The Administrator shall perform

such other services for the Trust that are mutually agreed to by the parties from time to time, for which the Trust will pay such fees

as may be mutually agreed upon, including the Administrator’s reasonable out-of-pocket expenses. The provision of such services

shall be subject to the terms and conditions of this Agreement.

The Administrator shall provide

the office facilities and the personnel determined by it to perform the services contemplated herein.

| | 6. | Compensation

of Administrator; Expense Reimbursement; Trust Expenses

The Administrator shall be

entitled to reasonable compensation for its services and expenses, as agreed upon from time to time in writing between the Trust on behalf

of each applicable Fund and the Administrator.

The Trust agrees promptly

to reimburse the Administrator for any equipment and supplies specially ordered by or for the Trust through the Administrator and for

any other expenses not contemplated by this Agreement that the Administrator may incur on the Trust’s behalf at the Trust’s

request or with the Trust’s consent.

The

Trust will bear all expenses that are incurred in its operation and not specifically assumed by the Administrator. For the avoidance

of doubt, Trust expenses not assumed by the Administrator include, but are not limited to: organizational expenses; cost of services

of independent accountants

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and outside legal and tax counsel (including such

counsel’s review of the Registration Statement, Form N-CSR, Form N-PORT, Form N-PX, Form N-CEN, proxy materials, federal and

state tax qualification as a regulated investment company and other notices, registrations, reports, filings and materials prepared

by the Administrator under this Agreement); cost of any services contracted for by the Trust directly from parties other than the

Administrator; cost of trading operations and brokerage fees, commissions and transfer taxes in connection with the purchase and

sale of securities for the Trust; investment advisory fees; taxes, insurance premiums and other fees and expenses applicable to its

operation; costs incidental to any meetings of shareholders including, but not limited to, legal and accounting fees, proxy filing

fees and the costs of preparation (e.g., typesetting, XBRL-tagging, page changes and all other print vendor and EDGAR charges,

collectively referred to herein as “Preparation”), printing, distribution and mailing of any proxy materials; costs

incidental to Board meetings, including fees and expenses of Board members; the salary and expenses of any officer, director\trustee

or employee of the Trust; costs of Preparation, printing, distribution and mailing, as applicable, of the Trust’s Registration

Statements and any amendments and supplements thereto and shareholder reports; cost of Preparation and filing of the Trust’s

tax returns, Form N-1A, Form N-CSR, Form N-PORT, Form N-PX, and Form N-CEN, and all notices, registrations and amendments associated

with applicable federal and state tax and securities laws; all applicable registration fees and filing fees required under federal

and state securities laws; the cost of fidelity bond and D&O/E&O liability insurance; and the cost of independent pricing

services used in computing the

Fund(s)’ net asset value.

| | 7. | Instructions

and Advice

At

any time, the Administrator may apply to any officer of the Trust or his or her designee for instructions and may consult with the independent

accountants for the Trust, with respect to any matter arising in connection with the services to be performed by the Administrator under

this Agreement. The Administrator shall be entitled to rely on and may act upon advice of counsel (who may be counsel for the Trust)

on all matters, and shall be without liability for any action reasonably taken or omitted pursuant to such advice.

The

Administrator shall not be liable, and shall be indemnified by the Trust, for any action taken or omitted by it in good faith and without

negligence or willful misconduct in reliance upon any such instructions or advice or upon any paper or document believed by it to be

genuine and to have been signed by the proper person or persons. The Administrator shall not be held to have notice of any change of

authority of any person until receipt of written notice thereof from the Fund(s). Nothing in this section shall be construed as imposing

upon the Administrator any obligation to seek such instructions or advice, or to act in accordance with such advice when received.

| | 8. | Limitation

of Liability and Indemnification

The Administrator shall

be responsible for the performance only of such duties as are set forth in this Agreement and, except as otherwise provided under Section

14, shall have no responsibility for the actions or activities of any other party, including other service providers. The Administrator

shall have no liability in respect of any loss, damage or expense suffered by the Trust insofar as such loss, damage or expense arises

from the performance of the Administrator's duties hereunder in reliance upon records that were maintained for the Trust by entities

other than the

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Administrator prior to the Administrator's appointment as

administrator for the Trust. The Administrator shall have no liability for any error of judgment or mistake of law or for any loss

or damage resulting from the performance or nonperformance of its duties hereunder unless caused by or resulting from the negligence

or willful misconduct of the Administrator, its officers or employees. No party shall be liable for any special, indirect,

incidental, punitive or consequential damages, including lost profits, of any kind whatsoever (including, without limitation,

attorneys' fees) under any provision of this Agreement or for any such damages arising out of any act or failure to act

hereunder, each of which is hereby excluded by agreement of the parties regardless of whether such damages were foreseeable or

whether either party or any entity had been advised of the possibility of such damages. In any event, except as otherwise agreed to

in writing by the parties, the Administrator's cumulative liability for each calendar year (a "Liability Period")

with respect to the Trust under this Agreement regardless of the form of action or legal theory shall be limited to its total annual

compensation earned and fees payable hereunder during the preceding Compensation Period, as defined herein, for any liability or

loss suffered by the Trust including, but not limited to, any liability relating to qualification of the Trust as a regulated

investment company or any liability relating to the Trust’s compliance with any federal or state tax or securities statute,

regulation or ruling during such Liability Period. “Compensation Period” shall mean the calendar year ending immediately

prior to each Liability Period in which the event(s) giving rise to the Administrator’s liability for that period have

occurred. Notwithstanding the foregoing, the Compensation Period for purposes of calculating the annual cumulative liability of the

Administrator for the Liability Period commencing on the date of this Agreement and terminating on December 31, 2026 shall be the

date of this Agreement through December 31, 2026, calculated on an annualized basis, and the Compensation Period for the Liability

Period commencing January 1, 2027 and terminating on December 31, 2027, shall be the date of this Agreement through December 31,

2026, calculated on an annualized basis.

The Administrator shall not

be responsible or liable for any failure or delay in performance of its obligations under this Agreement arising out of or caused, directly

or indirectly, by circumstances beyond its control, including without limitation, work stoppage, power or other mechanical failure, computer

virus, natural disaster, governmental action or communication disruption.

The Trust shall indemnify

and hold the Administrator and its directors, officers, employees and agents harmless from all loss, cost, damage and expense, including

reasonable fees and expenses for counsel, incurred by the Administrator resulting from any claim, demand, action or suit in connection

with the Administrator’s acceptance of this Agreement, any action or omission by it in the performance of its duties hereunder,

or as a result of acting upon any instructions reasonably believed by it to have been duly authorized by the Trust or upon reasonable

reliance on information or records given or made by the Trust or its investment adviser, provided that this indemnification shall not

apply to actions or omissions of the Administrator, its officers or employees in cases of its or their own negligence, bad faith or willful

misconduct.

The limitation of liability

and indemnification contained herein shall survive the termination of this Agreement.

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| | 9. | Confidentiality

All information provided

under this Agreement by a party (the “Disclosing Party”) to the other party (the “Receiving Party”) regarding

the Disclosing Party’s business and operations shall be treated as confidential. Subject to Section 10 below, all confidential

information provided under this Agreement by Disclosing Party shall be used, including disclosure to third parties, by the Receiving

Party, or its agents or service providers, solely for the purpose of performing or receiving the services and discharging the Receiving

Party’s other obligations under the Agreement or managing the business of the Receiving Party and its Affiliates (as defined in

Section 10 below), including financial and operational management and reporting, risk management, legal and regulatory compliance and

client service management. The foregoing shall not be applicable to any information (a) that is publicly available when provided or thereafter

becomes publicly available, other than through a breach of this Agreement, (b) that is independently derived by the Receiving Party without

the use of any information provided by the Disclosing Party in connection with this Agreement, (c) that is disclosed to comply with any

legal or regulatory proceeding, investigation, audit, examination, subpoena, civil investigative demand or other similar process, (d)

that is disclosed as required by operation of law or regulation or as required to comply with the requirements of any market infrastructure

that the Disclosing Party or its agents direct the Administrator or its Affiliates to employ (or which is required in connection with

the holding or settlement of instruments included in the assets subject to this Agreement), or (e) where the party seeking to disclose

has received the prior written consent of the party providing the information, which consent shall not be unreasonably withheld.

The undertakings and obligations

contained in this Section shall survive the termination of this Agreement for a period of three (3) years.

| | 10. | Use

of Data

(a)

In connection with the provision of the services and the discharge of its other obligations under this Agreement, the Administrator (which

term for purposes of this Section 10 includes each of its parent company, branches and affiliates (“Affiliates”)) may collect

and store information regarding the Trust or Fund and share such information with its Affiliates, agents and service providers in order

and to the extent reasonably necessary (i) to carry out the provision of services contemplated under this Agreement and other agreements

between the Trust and the Administrator or any of its Affiliates and (ii) to carry out management of its businesses, including, but not

limited to, financial and operational management and reporting, risk management, legal and regulatory compliance and client service management.

(b) Subject to

paragraph (d) below, the Administrator and/or its Affiliates may use any Confidential Information of the Customer (“Data”)

obtained by such entities in the performance of their services under this Agreement or any other agreement between the Trust and the

Administrator or one of its Affiliates, including Data regarding transactions and portfolio holdings relating to the Trust to develop,

publish or otherwise distribute to third parties certain investor behavior “indicators” or “indices” that represent

broad trends in the flow of investment funds into various markets, sectors or investment instruments (collectively, the “Indicators”),

but only so long as (i) the Data is combined or aggregated with (A) information of other customers of the

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Administrator and/or (B) information derived

from other sources, in each case such that the Indicators do not allow for attribution or identification of such Data with the Trust,

(ii) the Data represents less than a statistically meaningful portion of all of the data used to create the Indicators and (iii) the Administrator

publishes or otherwise distributes to third parties only the Indicators and under no circumstance publishes, makes available, distributes

or otherwise discloses any of the Data to any third party, whether aggregated, anonymized or otherwise, except as expressly permitted

under this Agreement.

(c)

The Trust acknowledged that the Administrator may seek to realize economic benefit from the publication or distribution of the

Indicators.

(d)

Except as expressly contemplated by this Agreement, nothing in this Section 10 shall limit the confidentiality

and data-protection obligations of the Administrator and its Affiliates under this Agreement and applicable law. The Administrator shall

cause any Affiliate, agent or service provider to which it has disclosed Data pursuant to this Section 10 to comply at all times with

confidentiality and data-protection obligations as if it were a party to this Agreement.

| | 11. | Compliance

with Governmental Rules and Regulations; Records

The Trust assumes full responsibility

for complying with all securities, tax, commodities and other laws, rules and regulations applicable to it.

In compliance with the requirements

of Rule 31a-3 under the 1940 Act, the Administrator agrees that all records which it maintains for the Trust shall at all times remain

the property of the Trust, shall be readily accessible during normal business hours, and shall be promptly surrendered upon the termination

of the Agreement or otherwise on written request except as otherwise provided in Section 13. The Administrator further agrees that all

records that it maintains for the Trust pursuant to Rule 31a-1 under the 1940 Act will be preserved for the periods prescribed by Rule

31a-2 under the 1940 Act unless any such records are earlier surrendered as provided above. Records may be surrendered in either written

or machine-readable form, at the option of the Administrator. In the event that the Administrator is requested or authorized by the Trust,

or required by subpoena, administrative order, court order or other legal process, applicable law or regulation, or required in connection

with any investigation, examination or inspection of the Trust by state or federal regulatory agencies, to produce the records of the

Trust or the Administrator’s personnel as witnesses or deponents, the Trust agrees to pay the Administrator for the Administrator’s

time and expenses, as well as the reasonable fees and expenses of the Administrator’s counsel incurred in such production.

| | 12. | Services

Not Exclusive

The services of the Administrator

are not to be deemed exclusive, and the Administrator shall be free to render similar services to others. The Administrator shall be deemed

to be an independent contractor and shall, unless otherwise expressly provided herein or authorized by the Trust from time to time, have

no authority to act or represent the Trust in any way or otherwise be deemed an agent of the Trust.

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| | 13. | Effective

Period and Termination

This Agreement shall remain

in full force and effect for an initial term ending September 30, 2027 (the “Initial Term”). After the expiration of the Initial

Term, this Agreement shall automatically renew for successive 1-year terms (each, a “Renewal Term”) unless a written notice

of non-renewal is delivered by the non-renewing party no later than ninety (90) days prior to the expiration of the Initial Term or any

Renewal Term, as the case may be. During the Initial Term and thereafter, either party may terminate this Agreement: (i) in the event

of the other party's material breach of a material provision of this Agreement that the other party has either (a) failed to cure

or (b) failed to establish a remedial plan to cure that is reasonably acceptable, within 60 days' written notice of such breach,

or (ii) in the event of the appointment of a conservator or receiver for the other party or upon the happening of a like event to the

other party at the direction of an appropriate agency or court of competent jurisdiction. Upon termination of this Agreement pursuant

to this paragraph with respect to the Trust or any Fund, the Trust or applicable Fund shall pay Administrator its compensation due and

shall reimburse Administrator for its costs, expenses and disbursements.

In

the event of: (i) the Trust's termination of this Agreement with respect to the Trust or its Fund(s) for any reason other than

as set forth in the immediately preceding paragraph or (ii) a transaction not in the ordinary course of business pursuant to which the

Administrator is not retained to continue providing services hereunder to the Trust or a Fund (or its respective successor), the Trust

or applicable Fund shall pay the Administrator its compensation due through the end of the then-current term (based upon the average

monthly compensation previously earned by Administrator with respect to the Trust or such Fund) and shall reimburse the Administrator

for its costs, expenses and disbursements. Upon receipt of such payment and reimbursement, the Administrator will deliver the Trust's

or such Fund's records as set forth herein. For the avoidance of doubt, no payment will be required pursuant to clause (ii) of

this paragraph in the event of any transaction such (a) the liquidation or dissolution of the Trust or a Fund and distribution of the

Trust's or such Fund's assets as a result of the Board's determination in its reasonable business judgment that the

Trust or such Fund is no longer viable (b) a merger of the Trust or a Fund into, or the consolidation of the Trust or a Fund with, another

entity, or (c) the sale by the Trust or a Fund of all, or substantially all, of the Trust's or Fund's assets to another entity,

in each of (b) and (c) where the Administrator is retained to continue providing services to the Trust or such Fund (or its respective

successor) on substantially the same terms as this Agreement.

Should the Agreement be

terminated by either party for any reason and if requested by the Trust, the Administrator agrees to continue performing the services

contemplated in this Agreement pursuant to the terms and conditions of this Agreement for such fair compensation as shall be agreed upon

between the Fund and the Administrator (the existing agreed-to compensation at the time of termination shall be one indicator of what

is considered fair compensation) for a reasonable period of time to be agreed upon by the parties in good faith, in order to provide for

the orderly transition of services to an alternative service provider designated by the Trust so that, to the extent feasible, the services

are maintained without interruption. The Trust shall reimburse the Administrator for additional costs (to be mutually agreed upon by the

parties) which are reasonably incurred by the Administrator in the transition. In the event of a merger of the Trust or a Fund into, or

the consolidation of the Trust or a Fund with, another entity, or the sale by the Trust or a Fund

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of all, or substantially all, of its assets to

another entity, the Administrator shall cooperate with the Trust to provide such information and assistance, as may be reasonably requested

by the Trust, to effect any such transaction.

Termination of this Agreement

with respect to any one particular Fund shall in no way affect the rights and duties under this Agreement with respect to the Trust or

any other Fund.

| | 14. | Delegation

| | a. | The Administrator shall have the right, without the consent

or approval of the Trust, to employ agents, subcontractors, consultants and other third parties, whether affiliated or unaffiliated,

to provide or assist it in the provision of any part of the services stated herein other than services required by applicable law to

be performed by the Administrator (each, a “Delegate” and collectively, the “Delegates”), without the consent

or approval of the Trust. The Administrator shall be responsible for the services delivered by, and the acts and omissions of, any such

Delegate as if the Administrator had provided such services and committed such acts and omissions itself. Unless otherwise agreed in

a Fee Schedule, the Administrator shall be responsible for the compensation of its Delegates.

| | b. | The Administrator will provide the Trust with information regarding

its global operating model for the delivery of the services on a quarterly or other periodic basis, which information shall include the

identities of Delegates affiliated with the Administrator that perform or may perform parts of the services, and the locations from which

such Delegates perform services, as well as such other information about its Delegates as the Trust may reasonably request from time

to time.

| | c. | Nothing in this Section 14 shall limit or restrict the Administrator’s

right to use affiliates or third parties to perform or discharge, or assist it in the performance or discharge, of any obligations or

duties under this Agreement other than the provision of the services.

| | 15. | Interpretive

and Additional Provisions

In connection with the operation

of this Agreement, the Administrator and the Trust on behalf of each of the Funds, may from time to time agree on such provisions interpretive

of or in addition to the provisions of this Agreement as may in their joint opinion be consistent with the general tenor of this Agreement.

Any such interpretive or additional provisions shall be in a writing signed by all parties, provided that no such interpretive or additional

provisions shall contravene any applicable laws or regulations or any provision of the Trust’s Governing Documents. No interpretive

or additional provisions made as provided in the preceding sentence shall be deemed to be an amendment of the Agreement.

| | 16. | Notices

Any notice, instruction

or other instrument required to be given hereunder will be in writing and may be sent by hand, or by facsimile transmission, or overnight

delivery by any recognized

delivery service, to the parties at the following address or such other

address as may be notified by any party from time to time:

If to the Trust:

The Arbitrage Funds

104 Fifth Avenue, 9th

Floor

New York, NY 10011

Attn: Jonathon Hickey, Chief Financial Officer

Telephone:

646-727-4446

Email: jhickey@wicfunds.com

With a copy to:

The Arbitrage Funds

104 Fifth Avenue, 9th

Floor

New York, NY 10011

Attn: Philip Channen, Chief Compliance Officer

Telephone: 646-727-4463

Email: pchannen@wicfunds.com

If to the Administrator:

State

Street Bank and Trust Company

One Congress Street,

Boston, MA 02114-2016

Attention: Andrea J. Griffin, Vice President

Telephone: 617-662-3590

Email: ajgriffin@statestreet.com

With a copy to:

State

Street Bank and Trust Company

Legal Division – Global Services Americas

1 Congress Street

Boston, MA 02114-2016

Attention: Senior Vice President and Senior Managing Counsel

| | 17. | Amendment

This Agreement may be amended at any time in writing by

mutual agreement of the parties hereto.

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| | 18. | Assignment

This Agreement may not be

assigned by (a) the Trust without the written consent of the Administrator or (b) the Administrator without the written consent of the

Trust, except that the Administrator may assign this Agreement to a successor of all or a substantial portion of its business, or to an

affiliate of the Administrator.

| | 19. | Successors

This Agreement shall be binding

on and shall inure to the benefit of the Trust and the Administrator and their respective successors and permitted assigns.

| | 20. | Data

Protection

The Administrator shall implement

and maintain a comprehensive written information security program that contains appropriate security measures to safeguard the personal

information of the Trust’s shareholders, employees, directors and/or officers that the Administrator receives, stores, maintains,

processes or otherwise accesses in connection with the provision of services hereunder. For these purposes, “personal information”

shall mean (i) an individual’s name (first initial and last name or first name and last name), address or telephone number plus

(a) social security number, (b) driver’s license number, (c) state identification card number, (d) debit or credit card number,

(e) financial account number or (f) personal identification number or password that would permit access to a person’s account or

(ii) any combination of the foregoing that would allow a person to log onto or access an individual’s account. Notwithstanding the

foregoing “personal information” shall not include information that is lawfully obtained from publicly available information,

or from federal, state or local government records lawfully made available to the general public.

| | 21. | Entire

Agreement

This Agreement contains the

entire understanding between the parties hereto with respect to the subject matter hereof and supersedes all previous representations,

warranties or commitments regarding the services to be performed hereunder whether oral or in writing.

| | 22. | Waiver

The failure of a party to

insist upon strict adherence to any term of this Agreement on any occasion shall not be considered a waiver nor shall it deprive such

party of the right thereafter to insist upon strict adherence to that term or any term of this Agreement or the failure of a party hereto

to exercise or any delay in exercising any right or remedy under this Agreement shall not constitute a waiver of any such term, right

or remedy or a waiver of any other rights or remedies, and no single or partial exercise of any right or remedy under this Agreement shall

prevent any further exercise of the right or remedy or the exercise or any other right or remedy. Any waiver must be in writing signed

by the waiving party.

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| | 23. | Severability

If any provision or provisions

of this Agreement shall be held to be invalid, unlawful or unenforceable, the validity, legality and enforceability of the remaining provisions

shall not in any way be affected or impaired.

| | 24. | Governing

Law

This Agreement shall be construed

and the provisions thereof interpreted under and in accordance with the laws of The Commonwealth of Massachusetts, without regard to its

conflicts of laws rules.

| | 25. | Reproduction

of Documents

This Agreement and all schedules,

exhibits, attachments and amendments hereto may be reproduced by any photographic, xerographic, photostatic, microfilm, micro-card, miniature

photographic or other similar process. The parties hereto all/each agree that any such reproduction shall be admissible in evidence as

the original itself in any judicial or administrative proceeding, whether or not the original is in existence and whether or not such

reproduction was made by a party in the regular course of business, and that any enlargement, facsimile or further reproduction of such

reproduction shall likewise be admissible in evidence.

| | 26. | Counterparts

This Agreement may be executed

in several counterparts, each of which shall be deemed to be an original, and all such counterparts taken together shall constitute one

and the same Agreement. Counterparts may be executed in either original or electronically transmitted form (e.g., faxes or emailed portable

document format (PDF) form), and the parties hereby adopt as original any signatures received via electronically transmitted form.

| | 27. | Cooperation

with Trust’s Accountants

The Administrator shall

cooperate with the Trust’s independent public accountants and take all reasonable actions in the performance of its obligations

under this Agreement to provide such information, as may be reasonably requested by the Trust from time to time, to such accountants for

the expression of their opinion.

| | 28. | Limitation

of Liability of the Trust and Funds

It is expressly acknowledged

and agreed that the obligations of the Trust and the Funds under this Agreement are not binding upon any of the trustees, officers, employees,

agents or shareholders of the Trust and the Funds individually, but bind only the property of a relevant Fund and no other Fund of the

Trust. The Transfer Agent agrees to look solely to the assets of the applicable Fund for the satisfaction of any liability in respect

of the Fund under this Agreement and will not seek recourse against such trustees, officers, employees, agents or shareholders, or any

of them, or any of their personal assets for such transaction.

[Remainder of page intentionally left blank.]

IN WITNESS WHEREOF, the parties hereto have caused

this Agreement to be executed by their officers designated below as of the date first written above.

THE ARBITRAGE FUNDS

| By:

| /s/ Jon Hickey

| Name:

| Jon Hickey

| Title:

| Chief Financial Officer

STATE STREET BANK AND TRUST COMPANY

| By:

| /s/ Andrea E. Sharp

| Name:

| Andrea E. Sharp

| Title:

| Managing Director

Information Classification: Limited Access

ADMINISTRATION AGREEMENT

SCHEDULE A

Listing of Fund(s)

| Trust/Fund Name

| Jurisdiction of Formation

| The Arbitrage Funds

| Delaware

Arbitrage Fund

Water Island Event-Driven Fund

Water Island Credit Opportunities

Fund

AltShares Merger Arbitrage

ETF

AltShares Event-Driven ETF

State

Street: Select Classification Level

Information Classification: Limited

Access

A-1

ADMINISTRATION AGREEMENT

SCHEDULE B

LIST OF SERVICES

| I. | Fund Administration Financial Reporting and Treasury Services as described in Schedule B1 attached hereto;

| II. | Fund Administration Tax Services as described in Schedule B2

attached hereto;

| III. | Fund Administration Legal Services as described in Schedule B3 attached hereto;

| IV. | Fund Administration CFTC Services as described in Schedule B4

attached hereto; and

| V. | RESERVED;

| VI. | N-PORT, N-CEN and Liquidity Risk Management Services as described in Schedule B6 attached hereto;

State

Street: Select Classification Level

Information Classification: Limited Access

Schedule B1

Fund Administration –Treasury Services

| a. | Prepare for the review by designated officer(s) of the Trust financial

information regarding the Fund(s) that will be included in the Trust’s semi-annual and annual shareholder reports, and other periodic

reports (as mutually agreed upon), including tax footnote disclosures where applicable;

| b. | Coordinate the audit of the Trust’s financial statements by the Trust’s independent accountants,

including the preparation of supporting audit workpapers and other schedules;

| c. | Prepare for the review by designated officer(s) of the Trust financial information required by Form N-1A,

proxy statements and such other reports, forms or filings as may be mutually agreed upon;

| d. | Provide sub-certificates in connection with the certification requirements of the Sarbanes-Oxley Act of

2002 with respect to the services provided by the Administrator;

| a. | Prepare for the review by designated officer(s) of the Trust annual fund

expense budgets, perform accrual analyses and roll-forward calculations and recommend changes to fund expense accruals on a periodic basis,

arrange for payment of the Trust’s expenses, review calculations

of fees paid to the Trust’s investment adviser, custodian, fund accountant, distributor and transfer agent and obtain authorization

of accrual changes and expense payments;

| e. | Provide periodic testing of the Fund(s) with respect to compliance with

the Internal Revenue Code’s mandatory qualification

requirements, the requirements of the 1940 Act and limitations for the Fund(s)

contained in the Registration Statement for the Fund(s) as may be mutually agreed upon, including quarterly compliance reporting to the

designated officer(s) of the Trust as well as preparation of Board compliance materials;

| f. | Prepare and furnish total return performance information for the Fund(s), including such information on

an after-tax basis, calculated in accordance with applicable U.S. securities laws and regulations, as may be reasonably requested by Trust

management;

| g. | Prepare and disseminate vendor survey information;

| h. | Prepare and coordinate the filing of Rule 24f-2 notices, including coordination of payment;

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B1-1

Execution Version

| i. | Maintain certain books and records of the Trust as required under Rule 31a-1(b) of the 1940 Act, as may

be mutually agreed upon.

Information Classification: Limited Access

2

SCHEDULE B2

Fund Administration Tax Services

| a. | Prepare annual tax basis provisions for both excise and income tax purposes,

including wash sales, all other required book/tax differences to be mutually agreed upon by the parties, and all tax financial statement

disclosure;

| b. | Prepare the Funds' annual federal, state, and local income and excise

tax returns and extension requests for review and for execution and filing by the Trust's independent accountants and execution

and filing by the Trust's treasurer, including Form 1120-RIC, Form 8613 and Form 1099-MISC;

| c. | Prepare annual shareholder reporting information relating to Form 1099-DIV;

| d. | Preparation of financial information relating to Form 1099-DIV, including completion of the ICI Primary

and Secondary forms, Qualified Dividend Income, Dividends Received Deduction, Alternative Minimum Tax, Foreign Tax Credit, United States

Government obligations;

| e. | Review and approve periodic income distribution calculations, including

estimates, and annual minimum distribution calculations (income and capital gain) for both federal and excise tax purposes prior to their

declaration; and

| f. | Participate in discussions of potential tax issues with the Funds and the Funds' audit firm.

Tax services, as described in this Schedule,

do not include identification of passive foreign investment companies, qualified interest income securities or Internal Revenue Code Section

1272(a)(6) tax calculations for asset backed securities.

Information Classification: Limited Access

B2-1

Execution Version

SCHEDULE B2(i)

CONSENT TO DISCLOSE TAX RETURN INFORMATION

Federal law prohibits our

disclosing, without your consent, your federal tax return information to third parties or our use of that information for purposes other

than the preparation of your return.

Subject to the terms and conditions

of the Administration Agreement dated September 24, 2026, and effective as of September 25, 2026 (the "Administration Agreement")

between STATE STREET BANK AND TRUST COMPANY ("we" or "State Street") and THE ARBITRAGE FUNDS ("you"

or the "Customer"), we may subcontract portions of our Fund Administration Tax Services (the "Tax Services") to

State Street affiliates and/or other subcontractors. By signing below, you hereby authorize us to provide any and all information, including

your entire tax return information for all past, present, and future years, that we receive in connection with this engagement to the

State Street affiliates listed on Schedule B2(ii), for the purpose of providing the Tax Services set forth in the Administration Agreement

and for related administration and regulatory compliance purposes.

Your consent will be valid

as long as the Administration Agreement remains in effect. Notwithstanding the foregoing, you may revoke your consent with regards to

Tax Services at any time by providing written notice to us. By signing below, you agree that if you revoke your consent we may refuse

to perform Tax Services and/or alter the fees we charge for such Tax Services.

In lieu of consenting to this

disclosure, you have the right to request a more limited disclosure of tax return information. In the event that the service model changes

as a result of your revocation or limitation on this consent, you agree to negotiate an equitable adjustment to the applicable fee schedule

in good faith.

THE ARBITRAGE FUNDS

| By:

| Name (printed):

| Jon

Hickey

| Title:

| Chief

Financial Officer

| Date:

| September 24, 2026

Information Classification: Limited Access

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SCHEDULE B2(ii)

| · | State

Street Corporate Services Mumbai Private Limited

| · | KPMG LLP

| · | Grant Thornton LLP

Information Classification: Limited Access

B2-3

SCHEDULE B3

Fund Administration Legal Services

| a. | Prepare

the agenda and resolutions for all requested Board of Trustees (the “Board”),

Independent Trustees, and committee

meetings, make presentations to the Board, Independent Trustees, and committee meetings where appropriate or upon reasonable request,

prepare minutes for such Board, Independent Trustees, and committee meetings and attend the Trust's shareholder meetings and prepare

minutes of such meetings;

| b. | Prepare for filing with the SEC the following documents: Form N-CSR, Form N-PX and all amendments to the

Registration Statement, including updates of the Prospectus and SAI for the Fund(s) and any supplements to the Prospectus and SAI for

the Fund(s);

| c. | Prepare for filing with the SEC proxy statements and provide consultation on proxy solicitation matters;

| d. | Maintain general Board calendars and regulatory filings calendars;

| e. | Maintain copies of the Trust's Declaration of Trust, By-laws and other corporate records of the

Trust as may be mutually agreed upon;

| f. | Assist in developing guidelines and procedures to improve overall compliance by the Trust;

| g. | Assist the Trust in preparing for and the handling of regulatory examinations

inquiries and investigations of the Trust and work closely with the Trust's legal counsel in response to any non-routine regulatory

matters;

| h. | Maintain awareness of significant emerging regulatory and legislative developments that may affect the

Trust, update the Board and the investment adviser on those developments and provide related planning assistance where requested or appropriate;

| i. | Coordinate the printing of the prospectus and shareholder financial reports;

| j. | Coordinate with insurance providers, including soliciting bids for Directors

& Officers/Errors & Omissions ("D&O/E&O")

insurance and fidelity bond coverage, file fidelity bonds with the SEC and make related Board presentations; and

| k. | Provide an in-person representative at regularly scheduled quarterly Board meetings to prepare minutes

for such Board meetings.

Information Classification: Limited Access

B3-1

SCHEDULE B4

Fund Administration CFTC Services

Subject to the authorization and direction

of the Trust, State Street will provide the CFTC Services set forth on Schedule B4 (the "CFTC Services") to assist the Funds,

the Trust and/or its affiliates in complying with applicable CFTC compliance testing and reporting requirements.

Limitation of Responsibilities. With regard

to the CFTC Services, the Administrator's responsibilities are limited to the provision of the CFTC Services described in Schedule

B4. These responsibilities do not include: (i) determination of the Trust’s status as a Commodity Pool Operator (a “CPO”),

(ii) the determination of the Trust’s eligibility for an exclusion from classification as a CPO, or (iii) the completion and filing

of the Form CPO-PQR. Where the Trust uses the Services to comply with any law, representation, agreement or other obligation, State Street

makes no representation that any such Services complies with such law, representation, agreement, or other obligation, and State Street

has no obligation of compliance with respect thereto. The Trust should contact its legal counsel for specific guidance on compliance

with the Commodity Exchange Act of 1936, as amended (the “Commodity Exchange Act”). Unless the Trust currently subscribes

to fund administration legal services with the Administrator, the CFTC Services do not include assisting the Trust with preparation of

annual enhanced prospectus disclosures. Assistance with the registration of an entity as a CPO is not included as a CFTC Service.

Responsibilities of the Trust.

The Trust is responsible for providing authorization and direction to the Administrator with respect to the CFTC Services. The Trust is

responsible for arranging, in each case where appropriate, for the review and comment by Trust’s independent accountants and legal

counsel of CFTC financial information, reports and any filings prepared by the Administrator. In addition, the Trust is solely responsible

for determining Trust’s status as a CPO, and/or Trust’s eligibility for an exclusion from classification as a CPO.

The Trust shall be responsible for

accurately and timely supplying the Administrator with complete financial, organizational and other information, and/or arranging for

the provision of such information from third parties, as may be required in order for the Administrator to provide the CFTC Services,

and any information requested by the Administrator in connection with the foregoing. The Administrator is authorized and instructed to

rely upon the information it receives from the Trust or any third party (including, without limitation, the Trust’s third party

administrator(s), custodian(s), prime broker(s), and other service providers to the Trust) authorized by the Trust to provide such information

to the Administrator and on any instructions received from the Trust. The Trust and any third party from which the Administrator shall

receive or obtain certain records, reports and other data included in the CFTC Services provided hereunder are solely responsible for

the contents of such information, including, without limitation, the accuracy thereof, and the Administrator shall be entitled to rely

on such records, reports and other data as provided to the Administrator by the Trust or any third party, and any instructions provided

to the Administrator by the Trust, and shall have no responsibility for making any interpretive determinations with respect thereto. The

Administrator has no responsibility to review, confirm or otherwise assume any duty with respect to the accuracy or completeness of any

such

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Information Classification: Limited Access

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Execution Version

information, or instructions, and shall be without liability for any

loss or damage suffered by the Trust as a result of the Administrator’s reliance on and utilization of such information or instructions

believed by it to be genuine and to have been properly issued by or on behalf of the Trust or such third party. The Administrator shall

have no responsibility and shall be without liability for any loss or damage caused by the failure of the Trust or any third party to

provide it with the information required.

CFTC financial reporting, compliance testing and exclusion

filing services

Subject to the authorization and direction

of the Trust and, in each case where appropriate, the review and comment by Trust’s independent accountants and legal counsel, and

in accordance with procedures that may be established from time to time between the Trust and the Administrator, the Administrator will:

| | i. | Perform monthly testing for compliance with the CFTC initial margin test and the CFTC net notional test;

and

| | ii. | As applicable, prepare the Trust’s initial and annual Rule 4.5 notice of exclusion from classification

as a CPO under the Commodity Exchange Act and file such initial and annual notice with the National Futures Association.

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SCHEDULE B5

RESERVED

State

Street: Select Classification Level

Information Classification: Limited Access

B5-1

SCHEDULE B6

Fund Administration

Form N-PORT (the “Form N-PORT Services”) and Form N-CEN (the “Form N-CEN Services”) Support Services (collectively,

the “Form N-PORT and Form N-CEN Support Services”) and Liquidity Risk Measurement Services and Quarterly Portfolio of Investments

Services (collectively, with the Form N-PORT and Form N-CEN Support Services, and for purposes of this Schedule B6, the “Services”)

| (a) | Standard N-PORT and N-CEN Reporting Solution (Data and Filing):

| · | Subject to the receipt of all required data, documentation,

assumptions, information and assistance from the Trust (including from any third parties with whom the Trust will need to coordinate

in order to produce such data, documentation, and information), the Administrator will use required data, documentation,

assumptions, information and assistance from the Trust, the Administrator’s internal systems and, in the case of Trusts not

administered by the Administrator or its affiliates, third party Trust administrators or other data providers, including but not

limited to Third Party Data (as defined below) (collectively, the “Required Data”) to perform necessary data

aggregations (including any applicable aggregation of risk metrics) and calculations and prepare, as applicable: (i) a monthly draft

Form N-PORT standard template for review and approval by the Trust and (ii) annual updates of

Form N-CEN for review and approval by the Trust.

| · | Each Trust acknowledges and agrees that it will be responsible for reviewing and approving each such draft

N-PORT template and N-CEN update.

| · | Following review and final approval by the Trust of each such draft

Form N-PORT template and N-CEN update, and at the direction of and on behalf of each Trust, the Administrator will (i) produce an

.XML formatted file of the completed Form N-PORT and Form N-CEN and maintain a record thereof in accordance with this Agreement and (ii) electronically submit such filing to the SEC.

The Form N-PORT Services will be provided to each portfolio

(the “Portfolio”) of the Trust(s) as set forth in the attached Annex 1, which shall be executed by the Administrator

and the Trust(s). The Form N-CEN Services will be provided to each Trust as set forth in the attached Annex 1. Annex 1 may

be updated from time to time upon the written request of the Trust and by virtue of an updated Annex 1 that is signed by both

parties.

| (b) | Quarterly Portfolio of Investments Services:

| | · | Subject to the receipt of all Required Data, and as a component of the

Form N-PORT and Form N-CEN Support Services, the Administrator will use such Required Data from the Trust, the Administrator’s

internal systems and other data providers to prepare a draft portfolio of investments (the “Portfolio of Investments”), compliant

with GAAP, as of the Trust’s first and third fiscal quarter-ends.

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| | · | Following review and final approval by the Trust of each such draft Portfolio

of Investments, and at the direction of and on behalf of each Trust, the Administrator will attach each Portfolio of Investments to the

first and third fiscal quarter-end N-PORT filing that is submitted electronically to the SEC.

| | (c) | Liquidity Risk Measurement Services:

| | · | The Administrator will provide the following liquidity risk measurement

services (“Liquidity Risk Measurement Services”)

to the Trust:

| | · | As applicable, the Administrator will provide each Trust with Liquidity

Risk Measurement Services that will provide calculation of security level exposure, characteristics, liquidity analytics, including days

to liquidate, liquidity scores, fixed income cost to liquidate, stress testing and redemption flow analysis. Liquidity analytics will

be calculated daily, weekly, or monthly (as per written agreement between the Administrator and each Trust) and, as applicable, aggregated

monthly for purposes of inclusion in the Administrator’s standard N-PORT filing template. Services also will

include the Administrator’s standard liquidity Trust profile report and online access to the Administrator’s dynamic risk

reporting tools via my.statestreet.com which enable Trusts to analyze and generate risk reporting.

| | · | The Liquidity Risk Measurement Services will be provided to each Portfolio of the Trust(s) as set forth

in the attached Annex 1, which shall be executed by the Administrator and the Trust(s). Annex 1 may be updated from time

to time upon the written request of the Trust and by virtue of an updated Annex 1 that is signed by both parties.

Trust Duties,

Representations and Covenants in Connection with (i) Form N-PORT and Form N-CEN Support Services, (ii) Liquidity Risk Measurement Services,

and (iii) Quarterly Portfolio of Investments Services.

The provision of the Services to each Trust by

the Administrator is subject to the following terms and conditions:

1. The

parties acknowledge and agree on the following matters:

The Services depend, directly or indirectly,

on: (i) Required Data and (ii) information concerning the Trust or its affiliates or any Fund, pooled vehicle, security or other investment

or portfolio regarding which the Trust or its affiliates provide services or is otherwise associated (“Trust Entities”) that

is generated or aggregated by the Administrator or its affiliates in connection with services performed on the Trust’s behalf or

otherwise prepared by the Administrator (“State Street Data,” together with Required Data and Third Party Data (as defined

below), “Services-Related Data”). The Administrator’s obligations, responsibilities and liabilities with respect to

any State Street Data used in connection with other services received by the Trust shall be as provided in

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2

such respective other agreements

between the Administrator or its affiliates and the Trust relating to such other services (e.g., administration and/or custody

services, etc.) from which the State Street Data is derived or sourced (“Other Trust Agreements”). Nothing in this

Agreement or any service schedule(s) shall limit or modify the Administrator’s or its affiliates’ obligations to the

Trust under the Other Trust Agreements.

In connection with the provision of the

Form N-PORT and Form N-CEN Support Services, Liquidity Risk Measurement Services, and Quarterly Portfolio of Investments Services by the

Administrator, the Trust acknowledges and agrees that it will be responsible for providing the Administrator with any information requested

by the Administrator, including, but not limited to, the following:

(A)

Arranging for the regular provision of all Required Data (including State Street Data, where applicable)

and related information to the Administrator, in formats compatible with Administrator-provided data templates including, without limitation,

Required Data and the information and assumptions required by the Administrator in connection with a Trust reporting profile and onboarding

checklist, as it, or the information or assumptions required, may be revised at any time by the Administrator, in its discretion (collectively,

the “Onboarding Checklist”) and such other forms and templates as may be used by the Administrator for such purposes from

time to time, for all Funds receiving services under this Agreement, including but not limited to those to be reported on Form N-PORT

and Form N-CEN (as determined by the Trust), including, without limitation, arranging for the provision of data from the Trust, its affiliates,

third party administrators, prime brokers, custodians, and other relevant parties. If and to the extent that Required Data is already

accessible to the Administrator (or any of its affiliates) in its capacity as administrator to one or more Trusts, the Administrator

and the Trust will agree on the scope of the information to be extracted from the Administrator’s or any of its affiliate’s

systems for purposes of the Administrator’s provision of Form N-PORT and Form N-CEN Support Services, Liquidity Risk Measurement

Services, and Quarterly Portfolio of Investments Services, subject to the discretion of the Administrator, and the Administrator is hereby

expressly authorized to use any such information as necessary in connection with providing the Form N-PORT and Form N-CEN Support Services

, Liquidity Risk Measurement Services, and Quarterly Portfolio of Investments Services, hereunder; and

(B)

Providing all required information and assumptions not otherwise included in Trust data and assumptions provided pursuant to Section

1(A) above, including but not limited to the Required Data, as may be required in order for the Administrator to provide the Services.

The following are examples of certain

types of information that each Trust is likely to be required to provide with respect to the Trust and each Fund thereof pursuant to Sections

1(A) and 1(B) above, and each Trust hereby acknowledges and understands that the following categories of information are merely illustrative

examples, are by no means an exhaustive list of all such required information, and are subject to change as a result of any amendments

to Form N-PORT and Form N-CEN or any changes in requirements relating to the provision of Liquidity Risk Measurement Services:

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| | · | SEC filing classification of the Trust (i.e., small or large filer);

| | · | Identification of any data sourced from third parties;

| | · | Identification of any securities reported as Miscellaneous; and

| | · | Any Explanatory Notes included in N-PORT Section E.

2.

Each Trust acknowledges that it has provided to the Administrator all material assumptions used

by the Trust or that are expected to be used by the Trust in connection with the completion of Form N-PORT and Form N-CEN the Liquidity

Risk Measurement Services, and Quarterly Portfolio of Investments Services, and that it has approved all material assumptions used by

the Administrator in the provision of the Services prior to the first use of the Services. The Trust will also be responsible for promptly

notifying the Administrator of any changes in any such material assumptions previously notified to the Administrator by the Trust or otherwise

previously approved by the Trust in connection with the Administrator’s provision of the Services. The Trust acknowledges that the

completion of Form N-PORT and Form N-CEN the Liquidity Risk Measurement Services, and Quarterly Portfolio of Investments Services, and

the data required thereby, requires the use of material assumptions in connection with many different categories of information and data,

and the use and/or reporting thereof, including, but not limited to the following:

| | · | Investment classification of positions;

| | · | Assumptions necessary in converting data extracts;

| | · | General operational and process assumptions used by the Administrator in performing the Services; and

| | · | Assumptions specific to the Trust and the Funds.

Each Trust hereby acknowledges and understands

that the foregoing categories of information that may involve the use of material assumptions are merely illustrative examples of certain

subject matter areas in relation to which the Trust (and/or the Administrator on its behalf in connection with the Services) may rely

on various material assumptions, and are by no means an exhaustive list of all such subject matter areas.

3. Each

Trust acknowledges and agrees on the following matters:

(A)

Each Trust has independently reviewed the Services (including, without limitation, the assumptions, market data, securities prices,

securities valuations, tests and calculations used in the Services), and the Trust has determined that the Services are suitable for its

purposes. None of the Administrator or its affiliates, nor their respective officers, directors, employees, representatives, agents or

service providers (collectively, including the Administrator, “State Street Parties”) make any express or implied warranties

or representations with respect to the Services or otherwise.

(B)

Each Trust assumes full responsibility for complying with all securities, tax, commodities and

other laws, rules and regulations applicable to it. The Administrator is not providing, and the Services do not constitute, legal, tax,

investment, or regulatory advice, or accounting or auditing services advice. Unless otherwise agreed to in writing by the parties to this

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Agreement, the Services are of general

application and the Administrator is not providing any customization, guidance, or recommendations. Where the Trust uses Services to comply

with any law, regulation, agreement, or other Trust obligation, the Administrator makes no representation that any Service complies with

such law, regulation, agreement, or other obligation, and the Administrator has no obligation of compliance with respect thereto.

(C) Each Trust may use the

Services and any reports, charts, graphs, data, analyses and other results generated by the Administrator in connection with the Services

and provided by the Administrator to the Trust (“Materials”) (a) for the internal business purpose of the Trust or the relevant

Fund relating to the applicable Service or (b) for submission to the U.S. Securities and Exchange Commission, as required, of a Form

N-PORT template and a Form N-CEN update, including any Portfolio of Investments, if applicable. The Trust may also redistribute the Materials,

or an excerpted portion thereof, to its Board of Trustees, investment managers, investment advisers, agents, clients, investors or participants,

as applicable, that have a reasonable interest in the Materials in connection with their relationship with the Trust (each a “Permitted

Person”); provided, however, (i) the Trust may not charge a fee, profit, or otherwise benefit from the redistribution of Materials

to Permitted Persons, (ii) data provided by third party sources such as but not limited to market or index data (“Third Party Data”)

contained in the Materials may not be redistributed other than Third Party Data that is embedded in the calculations presented in the

Materials and not otherwise identifiable as Third Party Data, except to the extent the Trust has separate license rights with respect

to the use of such Third Party Data, or (iii) the Trust may not use the Services or Materials in any way to compete or enable any third

party to compete with the Administrator. No Permitted Person shall have any further rights of use or redistribution with respect to,

or any ownership rights in, the Materials or any excerpted portion thereof.

Except as expressly provided

in this Section 3(C), the Trust, any of its affiliates, or any of their respective officers, directors, employees, investment managers,

investment advisers, agents or any other third party, including any client of, or investor or participant in the Trust or any Permitted

Persons (collectively, including the Trust, “Trust Parties”), may not directly or indirectly, sell, rent, lease, license

or sublicense, transmit, transfer, distribute or redistribute, disclose display, or provide, or otherwise make available or permit access

to, all or any part of the Services or the Materials (including any State Street Data or Third Party Data contained therein, except with

respect to Third Party Data to the extent the Trust has separate license rights with respect to the use of such Third Party Data). Without

limitation, Trust Parties shall not themselves nor permit any other person to in whole or in part (i) modify, enhance, create derivative

works, reverse engineer, decompile, decompose or disassemble the Services or the Materials; (ii) make copies of the Services, the Materials

or portions thereof; (iii) secure any source code used in the Services, or attempt to use any portions of the Services in any form other

than machine readable object code; (iv) commercially exploit or otherwise use the Services or the Materials for the benefit of any third

party in a service bureau or software-as-a-service environment (or similar structure), or otherwise use the Services or the Materials

to perform services for any third party, including for, to, or with consultants and independent contractors; or (v) attempt any of the

foregoing or otherwise use the Services or the Materials for any purpose other than as expressly authorized under this Agreement.

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(D)

The Trust shall limit the access and use of the Services and the Materials by any Trust Parties

to a need-to-know basis and, in connection with its obligations under this Agreement, the Trust shall be responsible and liable for all

acts and omissions of any Trust Parties.

(E)

The Services, the Materials and all confidential information of the Administrator (as confidential

information is defined in the Agreement and other than Third Party Data and Required Data), are the sole property of the Administrator.

The Trust has no rights or interests with respect to all or any part of the Services, the Materials or the Administrator’s confidential

information, other than its use and redistribution rights expressly set forth in Section 3(C) herein. The Trust automatically and irrevocably

assigns to the Administrator any right, title or interest that it has, or may be deemed to have, in the Services, the Materials or the

Administrator’s confidential information, including, for the avoidance of doubt and without limitation, any Trust Party feedback,

ideas, concepts, comments, suggestions, techniques or know-how shared with the Administrator (collectively, “Feedback”) and

the State Street Parties shall be entitled to incorporate any Feedback in the Services or the Materials or to otherwise use such Feedback

for its own commercial benefit without obligation to compensate the Trust.

(F)

The Administrator may rely on Services-Related Data used in connection with the Services without

independent verification. Services-Related Data used in the Services may not be available or may contain errors, and the Services may

not be complete or accurate as a result.

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Information Classification: Limited Access

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ANNEX I

THE ARBITRAGE FUNDS

Further to the Administration Agreement

dated as of September 24, 2026 and effective as of September 25, 2026, between The Arbitrage Funds (the “Trust”) and

State Street Bank and Trust Company (the “Administrator”), the Trust and the Administrator mutually agree to update this Annex

1 by adding/removing Funds and/or Portfolios as applicable:

| Liquidity Risk Measurement

Services

| THE ARBITRAGE FUNDS

| FREQUENCY

| Arbitrage Fund

| Daily

| Water Island Event-Driven Fund

| Daily

| Water Island Credit Opportunities Fund

| Daily

| AltShares Merger Arbitrage ETF

| Daily

| AltShares Event-Driven ETF

| Daily

Form N-PORT Services

and Quarterly Portfolio of

Investments Services

| THE ARBITRAGE FUNDS

| Service Type

| Arbitrage Fund

| Standard N-PORT and N-CEN

Reporting Solution (Data and Filing)

| Water Island Event-Driven Fund

| Standard N-PORT and N-CEN

Reporting Solution (Data and Filing)

| Water Island Credit Opportunities Fund

| Standard N-PORT and N-CEN

Reporting Solution (Data and Filing)

| AltShares Merger Arbitrage ETF

| Standard N-PORT and N-CEN

Reporting Solution (Data and Filing)

| AltShares Event-Driven ETF

| Standard N-PORT and N-CEN

Reporting Solution (Data and Filing)

| Form N-CEN Services

| THE ARBITRAGE FUNDS

Information Classification: Limited Access

B6-7

Execution Version

IN WITNESS WHEREOF, the undersigned, by their authorized representatives,

have executed this Annex 1 as of the last signature date set forth below.

| THE ARBITRAGE FUNDS

| STATE STREET BANK AND TRUST COMPANY

| By:

| /s/

Jon Hickey

| By:

| /s/ Andrea E. Sharp

| Name: Jon

Hickey

| Name:

| Andrea E. Sharp

| Title: Chief

Financial Officer

| Title:

| Managing Director

| Address: 104

5th Ave

| Address: 1 Lincoln Street, Boston, MA 02111

| New

York, NY 10011

| Date: September

24, 2026

| Date:

| September 24, 2026

Information Classification: Limited Access